

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erin Brokate	Team: Team # 3	CCRB Case #: 200911835	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 07/28/2009 6:28 PM	Location of Incident: Schenck Avenue & Pitkin Avenue	18 Mo. SOL 1/28/2011	Precinct: 75
Date/Time CV Reported Tue, 07/28/2009 6:31 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/31/2009 1:45 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Sanchez	23298	948129	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Sanchez	Abuse: PO Christopher Sanchez drew his gun.	A . Complaint Withdrawn
B . POM Christophe Sanchez	Discourtesy: PO Christopher Sanchez spoke obscenely to § 87(2)(b)	B . Complaint Withdrawn

Synopsis

The following complaint was filed by § 87(2)(b) on July 28, 2009 at IAB and was forwarded to the CCRB on July 31, 2009 via IAB log number 09-36846. § 87(2)(b) alleged that on July 28, 2009, at approximately 6:28 pm, he was stopped at a red light and as the light turned green he was getting ready to drive away. PO Christopher Sanchez of the 75th Precinct, who § 87(2)(b) identified by name, and another officer, who remains unidentified, stopped § 87(2)(b)'s vehicle in the vicinity of Schenck Avenue and Pitkin Avenue in Brooklyn, and accused him of not having his seatbelt on. As PO Sanchez approached the vehicle, his gun was drawn. PO Sanchez told § 87(2)(b) to put his "fucking hand on the steering wheel." § 87(2)(b) then received two summonses, one for not wearing a seatbelt and another for failure to provide insurance. § 87(2)(g)

§ 87(2)(g)

On August 6, 2009, § 87(2)(b) was sent a first "please call" letter. On August 6, 2009, the undersigned placed a first phone call to § 87(2)(b). § 87(2)(b) was explained the investigative process and he stated that he needed to think about it before he decided to pursue a complaint and would call the undersigned the following day with a decision. On August 13, 2009, after failing to hear from § 87(2)(b) the undersigned left a voicemail for § 87(2)(b) requesting a call back. On August 14, 2009, a third phone call was placed to § 87(2)(b) however there was a busy signal and no voicemail could be left for him. On August 19, 2009, § 87(2)(b) was sent a final "please call" letter. On August 19, 2009, a fourth phone call was placed to § 87(2)(b) at which time he stated he did not want to pursue his complaint and opted to withdraw his complaint. He stated that he was withdrawing his complaint voluntarily and was not coerced into doing so by any member of the NYPD or the CCRB. This withdrawal was recorded digitally and was reviewed by ASI Sarah Hyde, who found it to meet agency standards. On August 21, 2009, § 87(2)(b) was sent a "withdrawal" letter, which will be added to the case file upon its receipt.

§ 87(2)(g), it is recommended that this case be closed as **complaint withdrawn.**

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: